

AMADOR SUPERIOR COURT LAW AND MOTION TENTATIVE RULINGS

Monday, January 10, 2022

TO REQUEST A HEARING ON ANY MATTER ON THIS CALENDAR, YOU MUST CALL THE COURT AT (209) 257-2692 BY 4:00 P.M. ON THE DAY PRECEDING THE HEARING. NOTICE OF THE INTENTION TO APPEAR MUST ALSO BE GIVEN TO ALL OTHER PARTIES.

IF THE CLERK IS NOT NOTIFIED OF A PARTY'S INTENTION TO APPEAR, THERE WILL BE NO HEARING AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT. NO FURTHER NOTICE OF THE COURT'S RULING WILL BE PROVIDED.

19-CVC-11019 JAMESON BONNER BY AND THROUGH HIS VS. WAL MART STORE 2054
GUARDIAN AD LITE

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

On the court's own motion, Defendant's Motion for Summary Judgment is continued to February 28, 2022 at 8:30 a.m. in Department 1.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

19-CVC-11446 THAWLEY, PATRICIA VS. ARIAS, CYNTHIA

CIVIL MISCELLANEOUS MOTION - DEFENDANTS

TENTATIVE RULING:

On the court's own motion Defendant's Notice of Motion and Motion to Compel Plaintiff's Responses to Form Interrogatories, Special Interrogatories, and Document Demand, Including Production of Documents, and Payment of Monetary Sanctions is continued to February 7, 2022 at 8:30 a.m. in Department 1.

Attached to the Notice of Motion filed on October 28, 2021, Defendant submitted an unsigned Memorandum of Points and Authorities and an unsigned Declaration of Debra Fitzsimmons, failing to conform to CRC 7.103(a), which states "A pleading must be in writing and must be signed by all persons joining in it".

Defendant is ordered to file with the court the above pleadings, signed, pursuant to CRC 7.103(a), no later than ten (10) court days prior to the hearing and provide Plaintiff with notice.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

21-CVC-12136 PACIFIC GAS AND ELECTRIC COMPANY A VS. CAMPBELL CONSTRUCTION
CALIFORNIA CORP GENERAL ENGINEERING INC A C

DEMURRER - DEFENDANT'S

TENTATIVE RULING:

On the court's own motion, Defendant's Demurrer to Plaintiff's Amended Complaint is continued to February 7, 2022 at 8:30 a.m. in Department 1.

Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.

21-CVC-12287 AMADOR COUNTY UNIFIED SCHOOL VS. WAGES, JAYSON
DISTRICT A PUBLIC ENT

CIVIL MISCELLANEOUS MOTION - DEFENDANTS

TENTATIVE RULING:
On the court’s own motion, Respondent’s Motion for Reconsideration is continued to January 31, 2022 at 8:30 a.m. in Department 1.
Respondent’s Notice of Motion and Motion for Reconsideration filed September 22, 2021 failed to comply with local rule of court 4.03(d). On November 22, 2021, the court continued the motion to January 4, 2022 at 8:30 a.m. in Department 1, ordering Respondent to file an amended motion or submitted a written stipulation.
On November 24, 2021, Respondent filed an amended notice of motion but it was unsigned, failing to conform to CRC 7.103(a): “A pleading must be in writing and must be signed by all persons joining in it”.
Respondent is ordered to amend the notice of motion accordingly, conforming to all applicable rules of court and civil procedure prior to the next hearing date of January 31, 2022 at 8:30 a.m. in Department 1. If Respondent fails to do so, the court shall dismiss the motion.
Unless a hearing is requested, this ruling is effective immediately. Neither further notice of the ruling nor a formal order per CRC 3.1312 is required.